

22STCV14401 22STCV14401

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV14401 Hearing Date: July 15, 2026 Dept: 732

Hamada Abdulla v. Askar Ranjbar, et al.

Wednesday, July 15, 2026

CASE NUMBER: 22STCV14401

UNOPPOSED

Cross-Defendant Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Action for Delay in Prosecution

Facts: This is an action for breach of contract and fraud. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Hamada Abdulla ("Plaintiff") entered into an agreement with Defendant Askar Ranjbar to purchase from him the business known as All United Auto Wrecking, Inc. (FAC ¶¶ 2, 7–9.) Askar Ranjbar has repudiated the agreement and, with Defendants Mohammad Ranjbar and Mohamed Jafar, stole various goods from premises belonging to Plaintiff. (FAC ¶¶ 13–22.)

Defendants' Cross-Complaint ("XC") alleges as follows. Instead of Defendants agreeing to sell their business to Plaintiff, it was Plaintiff who agreed to sell their premises and lease to Defendants. (XC ¶¶ 13–19.) But Plaintiff refused to vacate the premises, forged documents indicating that Defendant had sold their business to Plaintiff, and entered Defendants' premises by deception in order to attempt to sell Defendants' inventory. (XC ¶¶ 20–32.) The landlord of the property, Cross-Defendant Aleksan Gezalian, has breached the lease by failing to afford Defendants quiet enjoyment of the property. (XC ¶¶ 38–43.)

Procedural History: Plaintiff filed the original Complaint on May 2, 2022, and filed the FAC September 21, 2022, alleging four causes of action:

Breach of Contract

Conversion

Fraud

Declaratory Relief

Defendants filed a Cross-Complaint on November 14, 2022, alleging ten causes of action:

Breach of Contract

Breach of Covenant of Fair Dealing

Conversion

Trespass

Aiding and Abetting

False Promise

Intentional Misrepresentation

Negligent Misrepresentation

Promissory Estoppel

Unjust Enrichment

On March 22, 2023, this court granted Doron F. Eghbali's motions to be relieved as counsel for Defendants and Cross-Complainants Askar Ranjbar, Mohamed Jafar, Mohammad Ranjbar.

On September 2 and 9, 2026, Askar Ranjbar in pro per filed successive cross-complaints, without leave of court.

Cross-Defendant Aleksan Gezalian filed the present motion to quash service of summons and to dismiss action on October 13, 2025. No opposition has been filed. But the motion is not accompanied by a proof of service.

Analysis

MOTION TO QUASH SERVICE OF SUMMONS OR DISMISS CASE

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc. § 583.410., subd. (a).) Dismissal may be granted upon the following applicable conditions:

(1) Service is not made within two years after the action is commenced against the defendant.

The action is not brought to trial within the following times:

(A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

(Code Civ. Proc. § 583.420, subd. (a)(1), (2).) The California Rules of Court ("CRC") permit discretionary dismissal under this latter subdivision "if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant." (CRC Rule 3.1340, subd. 9a.) The rules prescribe consideration of the following non-exclusive factors:

- (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;
- (2) The diligence in seeking to effect service of process;
- (3) The extent to which the parties engaged in any settlement negotiations or discussions;
- (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;
- (5) The nature and complexity of the case;
- (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;
- (7) The nature of any extensions of time or other delay attributable to either party;
- (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;
- (9) Whether the interests of justice are best served by dismissal or trial of the case; and
- (10) Any other fact or circumstance relevant to a fair determination of the issue.

The court must be guided by the policies set forth in Code of Civil Procedure section 583.130.1

(CRC Rule 3.1342, subd. (e).)

Cross-Defendant Aleksan Gezalian ("Gezalian") moves to quash service of summons upon him of the Cross-Complaint of Defendants Askar Ranjbar, Mohamed Jafar, Mohammad Ranjbar, on the grounds that no service of the operative cross-complaint, filed on November 14, 2022, has been made. Gezalian argues that the only service that has occurred was of a cross-complaint later filed without leave on September 2 or September 9, 2026 (two such cross-complaints were filed by Askar Ranjbar in pro per, without indications of serialization), which were filed without leave of court. (Motion at pp. 3–6.) Gezalian alternately moves to dismiss the Cross-Complaint against him because service was not effectuated until more than two years after the Cross-Complaint was filed. (Motion at pp. 6–7.)

The motion cannot presently be granted because it is presented without any accompanying proof of service. (Code Civ. Proc. § 1005, subd. (b) [moving papers must be served]; CRC Rule 3.1342, subd. (a) ["A party seeking dismissal of a case under Code of Civil Procedure sections 583.410-583.430 must serve and file a notice of motion at least 45 days before the date set for hearing of the motion."].) The motion is unopposed, raising further doubts as to whether service was accomplished.

Accordingly, hearing on the motion is CONTINUED to a date not less than 50 days from the date of the present order. Gezalian shall file within 5 days proof of service of the present motion to quash or dismiss upon all parties that have appeared in the action.

HAMADA ABDULLA.,

Plaintiff

v.

ASKAR RANJBAR, et al.,

Defendants.

AND RELATED CROSS-ACTIONS

Case No.: 22STCV14401

Hearing Date: July 15, 2026

[TENTATIVE] RULING RE:

Cross-Defendant Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Action for Delay in Prosecution

Cross-Defendant Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Action for Delay in Prosecution is CONTINUED to a date not less than 50 days from the date of the present order. Gezalian shall file within 5 days proof of service of the present motion upon all parties that have appeared in the action.

Cross-Defendant to give notice.

Dated: July 15, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court